

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 07/27/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: C23-00011
CASE NAME: KATHLEEN MAGANA VS. SURINDER SINGH SANGHA
JURY TRIAL
FILED BY:
TENTATIVE RULING:

Parties to Appear.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-01880
CASE NAME: HERNANDEZ VS. SATHRI
***HEARING ON MOTION IN RE: SUMMARY JUDGMENT**

FILED BY:

TENTATIVE RULING:

Continued by the Court to October 12, 2026.

3. 9:00 AM CASE NUMBER: C24-00945

CASE NAME: BANK OF AMERICA N.A. VS. MARK BREGMAN

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion to Set Aside the Dismissal to Enter Judgment Pursuant to Stipulation on March 3, 2026 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on July 27, 2026.

Background

The parties entered into that certain settlement agreement on or about May 30, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant debtor Mark F. Bregman ("Defendant") in the amount of \$36,159.83, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Settlement Agreement filed June 17, 2024, ¶¶1-4; see also Declaration filed as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶¶2-3. The Court hereby takes judicial notice of the Settlement Agreement. See Request for Judicial Notice filed March 3, 2026, **Exhibit B**. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. See Settlement Agreement, ¶¶1-4.

Defendant defaulted on the Payment Terms and Conditions. Supporting Declaration, ¶4. Defendant failed to cure after notice. *Id.* at ¶5 and **Exhibit A** thereto.

After credit for amounts paid, there remains \$15,356.22 due and owing, plus costs of \$1,003.61. See Supporting Declaration, ¶7.

An Amended Notice of Motion was filed March 30, 2026. The Proof of Service filed March 30, 2026 reflects service of the amended motion on Defendant with the July 27, 2026 hearing date included.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.